

#	Case Name	Tentative
1	Arch Insurance Company vs. Star Hardware, Inc. 2024-01437363	1. Demurrer to Amended Complaint 2. Demurrer to Amended Complaint 3. Demurrer to Amended Complaint <i>Hearings continued per stip filed 8/3/26.</i>
2	Cruz vs. Vergara 2025-01471462	Motion to Quash Subpoena Plaintiff Rodrigo Cruz's motion to quash the subpoena served on Cruz's employer Amazon Fresh Marketplace is GRANTED IN PART. The court will permit the discovery but limits the deposition subpoena to the following: 12-month limitation for attendance records; Job descriptions, physical requirements, and records reflecting physical limitations, restrictions, accommodations, or injury reports, limited to 3 years. No other documents shall be produced. Plaintiff Cruz to give notice.
3	Frey Environmental, Inc vs. Fietas 2025-01458158	1 - 3. Motion to Be Relieved as Counsel of Record <i>Hearings vacated. See minute order dated 8/18/26.</i>
4	Gilroy vs. Awad 2025-01514965	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <i>Hearings continued. See minute order dated 8/18/26.</i>
5	Lee vs. Kim 2022-01268609	Motion for Leave to File Amended Complaint <i>Hearing vacated. See minute order dated 8/18/26.</i>
6	Picaso vs. CTG Auto, LLC 2025-01521074	Motion to Compel Arbitration Defendants CTG Auto, LLC, Nissan Motor Acceptance Company LLC, and JP Morgan Chase Bank, NA's Motion to Compel Arbitration is GRANTED. (See Code Civ. Proc. § 1281.2.) Plaintiff Eden N. Picaso shall submit her First, Second, Fourth, Eighth, and Ninth Causes of Action, alleged against Defendants CTG Auto, LLC and JP Morgan Chase Bank, NA to binding

	arbitration pursuant to the terms of the agreement to arbitrate contained in the Retail Installment Sale Contract, dated January 31, 2024. (See ROA 61 [“Ayala Decl.”] at ¶7, Ex. B.) Plaintiff does not challenge the authenticity or enforceability of this agreement to arbitrate. Plaintiff does, however, note that claims of injunctive relief are carved out from the scope of the arbitration provision. Accordingly, the motion is GRANTED as to these causes of action, alleged against Defendants CTG Auto, LLC and JP Morgan Chase Bank, NA, <u>but any claim for injunctive relief shall not be referred to arbitration and be decided by this court.</u> Plaintiff Eden N. Picaso’s Tenth Cause of Action for declaratory relief against Defendants CTG Auto, LLC, Nissan Motor Acceptance Company, LLC and JP Morgan Chase Bank, NA is STAYED pending the outcome of the arbitration of Plaintiff’s claims against CRG Auto, LLC and JP Morgan Chase Bank, NA. Upon Plaintiff’s election, this cause of action may be arbitrated before the AAA arbitrator alongside the 1st-4th and 8th-9th causes of action. If Plaintiff refuses to agree to arbitrate this cause of action before the AAA Arbitrator, then this claim is stayed pending the completion of that arbitration. Upon completion of arbitration before the AAA Arbitrator, this cause of action may be submitted to a JAMS arbitrator, or other agreed-upon arbitrator, consistent with the agreement of the parties to arbitrate claims arising out of the motor vehicle lease dated June 10, 2022. (See Ayala Decl. at ¶5, Ex. A.) It is clear from the arbitration clause in the lease agreement, that Plaintiff may choose JAMS, or AAA, or “any other organization subject to our approval.” The express language grants Plaintiff the right to elect between JAMS, AAA or another arbitrator approved by Defendant. The “subject to our approval” language in the lease refers to “any other organization” agreed upon by the parties. Defendant provides no reasoned basis why the Court should depart from the terms of the arbitration agreement covering this claim. Since permitting this claim to be arbitrated separately from the 1st – 4th and 8th-9th causes of action would lead to a risk of conflicting rulings, the Court finds that a stay of the arbitration of the tenth cause of action pending the completion of the other arbitration is warranted if the parties cannot agree to arbitration concurrently with AAA. With respect to the 5th-7th causes of action alleged against Nissan North America, Inc., the Court sets a status conference re:
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		severance of Plaintiff's Lemon Law claims. Plaintiff and Nissan North America, Inc., may stipulate to sever the 5th-7th causes of action, or stay those causes of action until the completion of arbitration on other claims. If the parties cannot stipulate, each may file a brief not to exceed 10 pages, no earlier than 9 court days before the status conference, addressing the party's position regarding whether Plaintiff's Lemon Law claims should be severed or stayed pending the arbitration of the other claims. With respect to the 11th Cause of Action seeking to recover from Defendant's bond obtained pursuant to Veh. Code section 11710, the matter is STAYED pending the completion of the arbitration proceedings. (Code Civ. Proc. §1281.4.) The remainder of this action, including any claim for injunctive relief, is STAYED pending the outcome of the arbitrations. (Code Civ. Proc. §1281.4.) The jury trial scheduled for August 16, 2027 is vacated. An Alternative Dispute Resolution Review Hearing is scheduled for March 19, 2027 at 8:30 a.m. in Department C44 as to those causes of action in arbitration. A Status Conference Re Severance of Plaintiff's Lemon Law Claims (Causes of Action 5-7) is scheduled for November 20, 2026 at 8:30 a.m. in Department C44. Moving Defendants shall provide notice.
7	Pinzon vs. Opes Investments Inc. 2025-01509447	Motion for Arbitration Provision <i>Hearing continued. See minute order dated 8/18/26.</i>
8	Streker vs. Cobb 2024-01449117	Motion for Leave to File Cross Complaint <i>Hearing vacated. See minute order dated 8/18/26.</i>
9	Wicker vs. Volkswagen Group of America, Inc. 2025-01532708	Demurrer to Complaint Defendant Unstoppable Automotive Group AMV LLC, dba Audi Mission Viejo's demurrer to the 5th cause of action for negligent repair in plaintiff David Wicker's Complaint is OVERRULED, as this cause of action states sufficient facts. (Code Civ. Proc., § 430.10, subd. (e); <i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [elements]; Complaint, ¶¶ 47-48 [duty created by delivery